



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 9685 (EXTENSION)
ORIGINAL September 23, 1987
CORRECTED COPY

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 9685 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to January 31, 1994. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

FEB 25 1992

(DATE)

sn *Alan I. Roberts*
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

Certified Tank Manufacturing, Inc.
Ontario, CA

January 9, 1992



U.S. Department
of Transportation

Research and
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Administration

SEP 23 1987

400 Seventh Street, S.W.
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DOT-E 9685
(CORRECTED COPY)

1. **Certified Tank Manufacturing, Incorporated (Certified Tank), Wilmington, California,** is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to manufacture, mark and sell the packaging described in paragraph 7 below for use in the transportation of the hazardous materials described in paragraph 3 below in commerce, subject to the limitations and special requirements specified herein. This exemption authorizes the use of a non-DOT specification tank container, and provides no relief from any regulation other than as specifically stated.

2. **BASIS.** This exemption is based on the application from Certified Tank dated October 10, 1986, submitted in accordance with 49 CFR 107.103, and the public proceeding thereon and supplemental letter received July 20, 1987.

3. **HAZARDOUS MATERIALS (Descriptor and class).** Certain solid or solidified mixtures of waste flammable liquids and/or corrosive materials classed as flammable solid or corrosive material.

4. **PROPER SHIPPING NAME (49 CFR 172.101).** The specific chemical name or generic description as appropriate.

5. **REGULATION AFFECTED.** 49 CFR 173.154, 173.245b.

6. **MODES OF TRANSPORTATION AUTHORIZED.** Motor vehicle.

7. **SAFETY CONTROL MEASURES.** Packaging prescribed is a non-DOT specification roll on/roll off cylindrical tank container designed and constructed in accordance with drawings and calculations on file with the OHMT. Tank material is ASTM A36 or equivalent carbon steel. Dished heads are concave to pressure. Each tank must be tested to at least 20 psig. Lading must be top loaded and top or end discharged. Maximum volumetric capacity is 10 cubic yards. Each tank must be equipped with pressure relief devices conforming with 49 CFR 178.253-4(c)(1).

8. **SPECIAL PROVISIONS.**

a. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

b. Shippers may use the packaging covered by this exemption pursuant to the provisions of 49 CFR 173.22a.

c. Drivers must have been instructed as to necessary safeguards and proper procedures in the event of unusual delay, fire or accident.

d. The words "solid waste" or "solidified waste" as appropriate, must appear after the prescribed shipping description.

e. Lading must be limited to waste hazardous materials that have been processed for removal of free liquid by the addition of inert and nonreactive absorbent material in accordance with 40 CFR 264.314 and 265.314. All materials transported must be absent of free liquid as tested in accordance with EPA Test Method for Evaluating Solid Waste, SW-846, update II. These materials must be certified in writing to be solid material in accordance with ASTM D-4359-84 and to not contain any free liquid as determined by EPA Publication SW-846, Update II.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package or damage to the packaging must be reported to the OHMT as soon as practicable.

10. EXPIRATION DATE. January 31, 1989.

Issued at Washington, D.C.:

A. Suzanne Hedgepeth
5/1/87 Alan I. Roberts

Director
Office of Hazardous Materials Transportation

SEP 23 1987

(DATE)

Address all inquiries to: Director, Office of Hazardous Materials Transportation
Research and Special Programs Administration, U.S. Department of Transportation
Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FHWA.